



Texas Workforce Commission Appeal Tribunal



**TWC Building
Austin, Texas 78778**

05-19-2026

Date Mailed

CLAIMANT:

CHRISTOPHER FOWLER
7600 HIGHMEADOW DR APT 1053
HOUSTON TX 77063-4836

Appeal No. 4061814-1-1

S.S. No. XXX-XX-7632

I. C. Date 12/07/2025

Appeal Filed By: Employer

Date Appeal Filed: 01/12/2026

Notice: The attached decision of the Appeal Tribunal will become final unless, within **FOURTEEN (14) DAYS** after the date mailed, further action is taken in accordance with the instructions contained in this decision. The last day on which you may file an appeal is **06-02-2026**. This date takes into account any official Texas State or Federal holiday which would extend the appeal time limit.

Appearances:

Date/Location

For Claimant

For Employer

05/15/2026
Telephone

NONE

VICTORIA FLORENCE,
Supervisor, Contact Center
Operations

EMPLOYER: **PI:** X **NPI:** **Account No.** 14-598723-7

CENTENE MANAGEMENT COMPANY LLC
% THOMAS & COMPANY INC
PO BOX 280100
NASHVILLE TN 37228-0100

A-1ATE (907) DATES ARE SHOWN AS MONTH, DAY, & YEAR.



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CASE HISTORY: A determination dated January 5, 2026, approved the claimant's claim for benefits without disqualification under Section 207.044 of the Texas Unemployment Compensation Act. The employer appealed.

It was also ruled that any benefits paid to the claimant based on wage credits from this employer will be charged back to the employer's tax account for use in computing the employer's tax rate.

ISSUES: The issues in this case include:

Whether the claimant separated from the last work as a result of a discharge based on work-connected misconduct or a voluntary quit without good work-connected cause.

Whether benefits paid to the claimant based on wages from the employer should be charged to the employer's account for use in computing the employer's tax rate.

Whether the employer provided an adequate and timely response to the Notice of Application for Unemployment Benefits.

FINDINGS OF FACT: Prior to filing an initial claim for unemployment benefits with the effective date of December 7, 2025, the claimant last worked from April 25, 2022, through November 27, 2025, as a CUSTOMER SERVICE ADVOCATE for the named employer, a medical insurance company.

The claimant was fired due to excessive absences. On May 7, 2025, the claimant received two warnings for attendance and working at an unauthorized location. On October 6, 2025, the claimant received a Performance Improvement Plan, for excessive absences, which also served as the claimant's final warning. On November 20, 2025, the claimant called out without reason. The claimant was terminated.

The employer filed a protest to the Notice of Application for Unemployment Benefits on December 29, 2025, and the deadline to respond to this Notice was on December 29, 2025. The response stated a reason for the separation supported by facts about that separation. Commission records do not indicate that the employer has previously failed to respond adequately to requests from TWC for information relating to claims for unemployment benefits.

CONCLUSIONS: Section 207.044 of the Act provides that an individual who was discharged for misconduct connected with the individual's last work is disqualified for benefits until the individual has returned to employment and worked for six weeks or earned wages equal to six times the individual's benefit amount.

Section 201.012 of the Act defines misconduct to mean mismanagement of a position of employment by action or inaction, neglect that jeopardizes the life or property of another, intentional wrongdoing or malfeasance, intentional violation of a law, or violation of a policy or rule adopted to ensure the orderly work and the safety of employees, but does not include an act in response to an unconscionable act of an employer or superior.

The following decision has been adopted as a precedent by the Commission in Section **MC 15.05** of the Appeals Policy and Precedent Manual.

Appeal No. 2407-CA-77 The claimant had received warnings for his poor attendance record. Nonetheless, he was absent from work on the day before his discharge and was late to work on the day of his discharge. HELD : Discharged for misconduct connected with the work. Disqualification under Section 207.044 of the Act.

In the present case, the claimant received two warnings for poor attendance on May 7, 2025. The claimant received a final warning on October 6, 2025. On November 20, 2025, the claimant called out without giving a reason. Since the claimant received multiple warnings for poor attendance and was given a final warning, the claimant was discharged for misconduct connected with the work. The claimant is disqualified under Section 207.044 of the Act. The determination dated January 5, 2026, approving the claimant for benefits without disqualification under Section 207.044 of the Act, will be reversed.

Section 204.022 of the Act, in part, provides that benefits computed on benefit wage credits of an employee or former employee may not be charged to the account of an employer if the employee's last separation from the employer's employment before the employee's benefit year was under disqualifying circumstances under subsection 207.044, 207.045, 207.051, or 207.053.

As the claimant is disqualified from receiving benefits, the employer's account will not be subject to charge.

Section 212.006 of the Act provides that benefits paid to a claimant that are not in accordance with the final determination of an examiner or decision of an Appeal Tribunal, the Commission, or a reviewing court shall be refunded by the claimant to the Commission, or in the discretion of the Commission, deducted from future benefits payable to the claimant under this Act.

Section 208.004 of the Act provides that a person who receives notice of the filing of an initial claim for benefits shall notify the Commission promptly of any facts known to the person that may adversely affect the claimant's right to benefits, or affect a charge to the person's account. Such notification, including an initial response to a notice mailed to the person under Section 208.002 of the Act, must include sufficient factual information to allow the Commission to make a determination regarding the claimant's entitlement to benefits. Benefits paid to a claimant that are not in accordance with the final determination or decision shall be charged to the account of a person if, 1) the person, or the person's agent, without good cause, fails to provide adequate or timely notification; and 2) the Commission determines that the person, or the person's agent, has failed to provide timely or adequate notification on at least two prior occasions. Notification is not adequate if the notification merely alleges that a claimant is not entitled to benefits without providing sufficient factual information, other than a general statement of the law, to support the allegation. Good cause is established only by showing that a person, or the person's agent, was prevented from complying due to compelling circumstances that were beyond the person's control.

Commission Rule 1, 40 TAC 815.1 states, in part:

(3) Adequate notification--A notification of adverse facts, including any subsequent notification, affecting a claim for benefits, as provided in the Act, Chapter 208.

(A) Notification to the Commission is adequate as long as the employer or its agent gives a reason, supported by facts, directly related to the allegation raised regarding the claimant's right to benefits.

(B) The employer or its agent may demonstrate good cause for failing to provide adequate notice. Good cause is established solely by showing that the employer or its agent was prevented from providing adequate notification due to compelling circumstances beyond the control of the employer or its agent.

(C) Examples of adequate notification of adverse facts include, but are not limited to, the following:

(i) The claimant was discharged for misconduct connected with his work because he was fighting on the job in violation of written company policy.

(ii) The claimant abandoned her job when she failed to contact her supervisor in violation of written company policy and previous warnings.

(D) A notification is not adequate if it provides only a general conclusion without substantiating facts. A general statement that a worker has been discharged for misconduct connected with the work is inadequate. The allegation may be supported by a summary of the events, which may include facts documenting the specific reason for the worker's discharge, such as, but not limited to:

(i) policies or procedures;

(ii) warnings;

(iii) performance reviews;

(iv) attendance records;

(v) complaints; and

(vi) witness statements.

In the present case, the employer's response provided sufficient facts for the Commission to make a determination on the claimant's entitlement to benefits. Therefore, it is concluded that the employer provided an adequate response to the Notice of Application for Unemployment benefits under Section 208.004 of the Act.

DECISION: The determination dated January 5, 2026, approving benefits without disqualification, is reversed. The claimant is disqualified under Section 207.044 of the Act beginning December 7, 2025, and continuing until the claimant has returned to employment and either worked six weeks or earned wages at least equal to six times the claimant's weekly benefit amount.

The chargeback ruling is reversed. There will be no chargeback to the employer's account as a result of this claim.

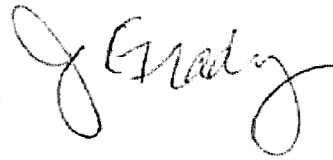
The employer provided an adequate response to the Notice of Application for Unemployment benefits under Section 208.004 of the Act.

This decision may result in an overpayment. Overpayments must be repaid to TWC if you received benefits during the period covered by this decision.

If there is an overpayment, you will receive a Notice of the Overpaid Amount Resulting From Appeals Decision. The Notice will show the amount of the overpayment. The Notice is NOT an appealable document.

If you disagree with the creation of this overpayment, file a written appeal within 14 calendar days of the date of the Appeal Tribunal decision.

Instructions for filing an appeal are attached as the last page to the Appeal Tribunal decision.



J. GRADY
Hearing Officer

pl1



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BENEFIT OVERPAYMENT COLLECTIONS
TEXAS WORKFORCE COMMISSION
PO BOX 149352
AUSTIN TX 78714-9940

320414010000290101



STATEMENT OF OVERPAID UNEMPLOYMENT BENEFITS ACCOUNT
Statement Date: May 21, 2026

CHRISTOPHER FOWLER
7600 HIGHMEADOW DR APT 1053
HOUSTON TX 77063-4836



Account Number: 13-379936-2
SSN: XXX-XX-7632

PAYMENT INFORMATION	Summary of Account Activity for Claim: 12-07-25	
	CLAIM OVERPAYMENT AMOUNT	ASSESSMENT CHARGES
Payment Due Date: 05-31-26	Previous Balance: \$0.00	Previous Balance: \$0.00
Minimum Payment Due: \$350.00	Additional Overpayment: \$8,358.00	Additional Fees/Interest: \$0.00
Total Outstanding Balance for this Claim: \$8,358.00	Payments: \$0.00	Payments: \$0.00
	Offsets/Absorptions: \$0.00	
	Overpayment Balance: \$8,358.00	Assessment Balance: \$0.00
	PENALTY CHARGES	
	Previous Balance: \$0.00	Payments: \$0.00
	Additional Penalty: \$0.00	Penalty Balance: \$0.00

If you have questions about this statement, call (512) 936-3338 or email special.colloverypay@twc.texas.gov.

HEARING-IMPAIRED CLIENTS: Dial 711 for Relay Texas.

BO205E 08/20/13

Detach this portion. Return it with your payment in the enclosed envelope by the due date in the Payment Information box at the top of this letter.
Pay only by **check** or **money order** made payable to **Texas Workforce Commission**. To ensure proper credit, write your account number noted below on the check or money order.

Account Number: 13-379936-2
SSN: XXX-XX-7632
Name on Account: CHRISTOPHER FOWLER

Amount Due: \$350.00
Statement Date: May 21, 2026

Enter Amount Enclosed:

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TWC REVENUE & TRUST MANAGEMENT
TEXAS WORKFORCE COMMISSION
PO BOX 149352
AUSTIN TX 78714-9940

Summary of Account Activity for Claim	
Date Payment Received	Amount
N/A	\$0.00

BO205J 03/12/12

If you have a change of address, complete the information below:

Mailing Address: _____

City: _____ State _____ Zip: _____

Phone Number: - -

Signature: _____

BO205J 03/12/12